

SENATE BILL 2499

By Kyle

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 56 and Title 71, relative to the coverage of
long-acting injectable drugs for the treatment or
prevention of human immunodeficiency virus.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 71-5-107(a), is amended by adding the following as a new subdivision:

() Long-acting injectable drugs intended for treatment and prevention of human immunodeficiency virus (HIV) and administered in a pharmacy, physician's office, clinic, ambulatory surgical treatment center, or hospital, in accordance with § 71-5-175;

SECTION 2. Tennessee Code Annotated, Title 71, Chapter 5, Part 1, is amended by adding the following as a new section:

71-5-175.

(a) A managed care organization (MCO) or pharmacy benefits manager (PBM) shall reimburse a claim for a long-acting injectable drug:

(1) Intended for treatment and prevention of human immunodeficiency virus (HIV); and

(2) Administered in a pharmacy, physician's office, clinic, ambulatory surgical treatment center, or hospital.

(b) An MCO or PBM that covers a claim pursuant to subsection (a) as a medical benefit or service shall also cover any such claim as a pharmacy benefit; provided, that:

(1) The MCO or PBM shall only reimburse a provider for each individual treatment or service provided; and

(2) An individual provider may only be reimbursed for each claim under either the pharmacy benefit or the medical benefit or service.

(c) This section applies to an MCO or PBM that is contracted with the bureau of TennCare to administer and provide or reimburse for medical or pharmacy services for TennCare enrollees on behalf of the bureau.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it.